

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
TRAVIS WILLIAMS,

Plaintiff

- against -

CITY OF NEW YORK,
POLICE OFFICER EDUARDO LOPEZ (shield # 15490),
POLICE OFFICER JOHN DOE,

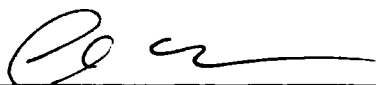
SUMMONS

Defendants.
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TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
January 23, 2024



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
295 Madison Avenue, 12th Floor
New York, NY 10017
(212) 939-7251

Defendant's Address:
CORPORATION COUNSEL OF THE
CITY OF NEW YORK
100 Church Street
New York, New York 10007

Index No. _____
Purchased 1-23-24

Plaintiff designates Bronx
County as the place of trial

The basis of the venue is
where the tort arose

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

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TRAVIS WILLIAMS,

Plaintiff,

Index No.
Verified Complaint

- against -

CITY OF NEW YORK,
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POLICE OFFICER JOHN DOE,

Defendants.
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Plaintiff TRAVIS WILLIAMS, by his attorneys THE LAW OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff TRAVIS WILLIAMS was a resident of the State of New York.
2. At all times hereinafter mentioned, Defendant CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, the NEW YORK CITY POLICE DEPARTMENT ("NYPD") was and is an agency of Defendant CITY.
4. At all times hereinafter mentioned, Defendants POLICE OFFICER EDUARDO LOPEZ (shield # 15490)("P.O. LOPEZ") and POLICE OFFICER JOHN DOE ("P.O. DOE") were and are police officers employed by the Defendants.

BACKGROUND

5. On November 3, 2022, at approximately 11:30 a.m., in the vicinity of 200 City Island Avenue in Bronx County, without just cause or provocation, Defendants P.O. LOPEZ, P.O. DOE and other members of the NYPD approached Plaintiff, struck Plaintiff, tackled Plaintiff and tased Plaintiff.

6. While Plaintiff was on the ground, P.O. DOE kned Plaintiff in Plaintiff's back and legs.

7. Shortly thereafter, while Plaintiff was in an ambulance, P.O. LOPEZ, P.O. DOE and other members of the NYPD violently grabbed and struck Plaintiff.

8. As a result of Defendants' conduct, Plaintiff sustained various serious physical injuries, including but not limited to a left tibial plateau fracture that required surgery.

9. Plaintiff remained hospitalized until November 15, 2022.

PROCEDURAL POSTURE

10. On January 12, 2023, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendants of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

11. More than thirty days have elapsed since service of said notice, and Defendant CITY has failed to pay or adjust this claim.

12. This action has been commenced within one year and ninety days after the cause of action accrued.

13. Plaintiff has duly complied with all conditions' precedent to the commencement of this action.

FIRST CAUSE OF ACTION: ASSAULT

14. Paragraphs 1-13 are incorporated by reference as though fully set forth herein.

15. P.O. LOPEZ, P.O. DOE, and other officers with the NYPD, acting as the agents, servants and employees of the Defendants, placed Plaintiff in apprehension of imminent harmful or offensive contact by aggressively approaching, striking, tackling and tasing Plaintiff.

16. As a result of being assaulted by the Defendants, including P.O. LOPEZ and P.O. DOE, Plaintiff sustained multiple physical injuries, including a left tibial plateau fracture that required surgery. Buttress plates and screw devices were inserted into Plaintiff's leg during this surgery. Plaintiff also sustained emotional distress and fear and intimidation for his safety.

SECOND CAUSE OF ACTION: BATTERY

17. Paragraphs 1-16 are incorporated by reference as though fully set forth herein.

18. When the Defendants, including P.O. LOPEZ and P.O. DOE, aggressively approached, struck, tackled and tased Plaintiff, they subjected Plaintiff to a harmful or offensive bodily contact. The Defendants, including P.O. LOPEZ and P.O. DOE, intended to make that contact without Plaintiff's consent.

19. As a result of being battered by the Defendants, Plaintiff sustained multiple physical injuries, including a left tibial plateau fracture that required surgery. Plaintiff also sustained emotional distress and fear and intimidation for his safety.

THIRD CAUSE OF ACTION: NEGLIGENT HIRING AND SUPERVISION

20. Paragraphs 1-19 are incorporated by reference as though fully set forth herein.

herein.

21. Prior to and on or about November 3, 2022, Defendant CITY knew or should have known P.O. LOPEZ to be unruly and to verbally threaten, harass, assault and batter other human beings.

22. Defendant CITY negligently hired and trained P.O. LOPEZ and negligently failed to supervise or discharge him from his employ, thereby causing and contributing to the above-stated incident.

23. Plaintiff was caused to sustain serious physical injuries, shock and mental anguish; that these injuries and their effects will be permanent.

24. As a result of the foregoing, Plaintiff was damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: New York, NY
January 23, 2024

Yours, etc.,

THE LAW OFFICES OF ELLIOT S. KAY


BY: ELLIOT S. KAY, ESQ.

Attorney for Plaintiff
295 Madison Avenue, 12th Floor
New York, NY 10017
(212) 939-7251

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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Plaintiff

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VERIFICATION

I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff currently resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY
January 23, 2024



ELLIOT S. KAY